ST. JAMES
BAY
CARRABELLE, FLORIDA

Architecture Review Board Guidelines and Procedures

Forms Included

St. James Bay Property Owners Association, Inc.
Balance Sheet
As of December 2, 2015

	Dec 2, 15
ASSETS	
Current Assets	
Checking/Savings	
CD ACCT #634469 RESERVE ACCT	130,818.40
CD ACCT#634493 RESERVE ACCOUNT	144,219.64
SJBPOA Operating Account	57,040.48
SJBPOA Reserve Account	89,804.54
Total Checking/Savings	421,883.06
Accounts Receivable	
Accounts Receivable	-9,781.50
Total Accounts Receivable	-9,781.50
Other Current Assets	
Accounts Receivable-Misc	1,215.00
Allowance for Bad Debt	-70,525.00
Common Area	63,709.24
Total Other Current Assets	-5,600.76
Total Current Assets	406,500.80
TOTAL ASSETS	**406,500.80**
LIABILITIES & EQUITY	
Liabilities	
Current Liabilities	
Other Current Liabilities	
ACCRUED EXPENSES	2,229.72
Assesments in Advance	1,215.00
Reserves for repair/replacement	221,473.00
Total Other Current Liabilities	224,917.72
Total Current Liabilities	224,917.72
Total Liabilities	224,917.72
Equity	
Retained Earnings	127,131.13
Net Income	54,451.95
Total Equity	181,583.08
TOTAL LIABILITIES & EQUITY	**406,500.80**

ST. JAMES BAY
CAPRABELLE, FLORIDA

Architectural Review Board
Application For Approval For Construction

Owner Name: _____ Date: _____

Owner Address: _____ Day Phone: _____

Address of Construction: _____ Evening Phone: _____

Application For: ___New Construction ___Exterior Alteration/Addition ___Pool ___Other

Architect Name and Contact Info: _____

Builders Name and Contact Info: _____

Enclosed Dwelling Area (Square Footage A/C & Heated): _____ + _____ = _____
(First Floor) (Second Floor) (Total Area)

Items Needed for Approval Process: Submittal Checklist	Date Initially Submitted	Is Submission Complete	Date Approved
_____ Architectural Plan (including floor plan & elevations)	_____	_____	_____
_____ Sedimentation Control Plan (including detailed drainage plan)	_____	_____	_____
_____ Plot Plan (showing footprint w/all setbacks)	_____	_____	_____
_____ Landscape Plan (including tree/topo survey)	_____	_____	_____
_____ Foundation Wall Detail	_____	_____	_____
_____ Exterior Materials	_____	_____	_____
_____ Exterior Colors	_____	_____	_____
_____ Physical Layout on Lot with String Line	_____	_____	_____
_____ Tap Fees	_____	_____	_____
_____ Sidewalk Reimbursement	_____	_____	_____

Submitted By: _____ _____ _____
Name & Title Firm Date

Exterior Materials & Colors:

Be Specific. Show manufacturer, or brand name and number when possible.

	Material	Color	Description Manufacturer or Brand Name & Number
Siding			
Roofing			
Fascia, Trim			
Gutters			
Shutters			
Front Door			
Exterior Doors			
Garage Doors			
Windows			
Foundation Piers			
Chimney			
Columns			
Railing			
Porch Floor			
Porch Ceiling			
Rafter Tail			
Soffit/Eave			
Gable			
Band Board			
Corner Board			
Screening			
Driveway			
Walkway			
Fence			
Misc. Walls			

Exhibit A

Schedule of Penalties

As indicated in Paragraph 4 of the Approval for Construction, of which this is a part, the following schedule of penalties for the indicated compliance or rules violations will apply to the above captioned project:

1. Non-compliance with approved construction plans, including a siting variance greater than 1 foot, or any major exterior change without prior SJBARB approval.

   Compliance deposit ($2,500); must also submit as-built drawings

2. Minor deviation form approved construction plans.

First violation:	Must submit as-built drawings
Second & subsequent violations:	$100 fine and as-built drawings

3. Failure to submit landscape plan within specified time period.

   $2.50 / day ($50 minimum, $500 maximum)

4. Failure to complete landscaping per SJBARB-approved landscape plan within 90 days after receipt of Certificate of Occupancy from Franklin County.

   $20 / day ($300 minimum, $1,500 maximum)

5. Clearing of site (removal of any trees) or start of construction before SJBARB Approval for Construction is issued.

   Immediate stoppage of work, unauthorized damage to trees to be determined

6. No portable toilet or trash container at job site.

   $100 / day *

7. Failure to deposit all trash in receptacles or trash overflow.

   $100 / day *

8. Construction trash fires – $500

9. Violation of any sign rule

First infraction at specific job site:	$100 / day *
Second infraction at same site:	$500 / day **

10. Failure to post SJBARB Approval or any other permits.

$100 / day *

11. Use of exterior colors not approved by SJBARB.

Compliance deposit ($2,500), or $250 if changes to approved colors

12. Unauthorized tree removal (greater than 4" diameter)

Pine or Palmetto	$ 500 per tree ***
Oak (any variety)	$2,000 per tree ***

13. Failure to initiate construction within 6 months of SJBARB approval.

Revocation of SJBARB Approval for Construction

14. Failure to complete project within one year after SJBARB approval, unless written extension granted by SJBARB in advance.

Compliance deposit ($2,500)

15. Building occupancy prior to issuance of Certificate of Occupancy by Franklin County, or before furnishing a copy of such C.O. to SJBARB.

$1,000

* After 48-hours (2 working days) telephone notice by SJBARB or it agent.
** After 24-hour notice, sign will be removed by SJBARB or its agent.
*** May be reduced by implementing a tree replacement plan approved by the SJBARB.

ACKNOWLEDGEMENT:

The above Schedule of Penalties potentially applicable to this project has been reviewed and is acknowledged by my/our signature below.

_____	_____
Property Owner	Builder
Date:_____	Date:_____

ST. JAMES
BAY
CARRABELLE, FLORIDA

Architectural Review Board
Request For Variance

Owner Name: _____ Date: _____

Owner Address: _____ Day Phone: _____

Address of Construction: _____ Evening Phone: _____

Approval of the below described variance(s) to SJBARB guidelines is requested for the Approval for Construction to which this request is attached. Applicant should list each item requested, state the SJBARB guideline, and describe the variance sought. Then state a justification for the variance on the other side of this form.

	Item Requested	SJBARB Guideline	Variance Sought
1.			
2.			
3.			
4.			
5.			
6.			
7.			
8.			
9.			
10.			

The undersigned has presented a justification on the other side of this form for each variance requested above.

Submitted By: (Signature) _____

Phone Number _____

St James Bay Architectural Review Board

Guidelines and Procedures

ARTICLE I - DEFINITIONS

1. "Board" shall mean the Board of Directors of the St. James Bay Property Owners' Association, Inc. (the "Master Association").

2. "Covenants and Restrictions" shall mean all the provisions of these Bylaws and the provisions of the Declaration of the St. James Bay Land Use Covenants as each is from time to time amended.

3. "Developer" shall mean and refer to Carabelle Properties Limited, a Texas limited partnership, the owner of St. James Bay development, which is authorized to do business in the State of Florida, or Carabelle Properties Limited's successors and/or assigns.

8. "Declaration of the St. James Bay Land Use Covenants" shall mean that instrument of that name, recorded in the Public Records of Franklin County, Florida as adopted by Developer and as amended from time to time by Developer and/or the Board.

9. "Easement" and/or "Easements" shall mean the easements described herein as well as the easements shown on the Plat recorded in Plat Book ___, Page _____ of the Public Records of Franklin County, Florida and any easements that may be filed from time to time with the filing of plats for the various phases of the St. James Development. Developer may grant such easements as it deems necessary for the development and efficient operation of the Subdivision, including, but not limited to, cart path easements and "flyway" easements across the wetlands for the Golf Club.

10. "Garden Home Lot" for purposes of these "Guidelines and Procedures" shall mean that portion of the Property designated as Blocks J, K, L, M and T, and divided into single family residential parcels for sale by the Developer to the general public. Each individual single family residential parcel that is located in the blocks covered by this paragraph shall be known as a "Garden Home Lot."

11. " Golf Club" means any land or facilities that are a part of Golf Course, including but not limited to any Wildlife Habitat Areas, Easements, and drainage or retention areas that are reserved to the St. James Bay Golf Club. These areas are not a part of the Common Area of the Master Association. However, St. James Bay Golf Club shall be a Member of the Master Association, but only to the extent set out in Articles II and Article III of the Bylaws for voting and assessment purposes.

12. "Garden Home Association" shall mean the St. James Bay Garden Home Property Owners Association, Inc., a Florida not-for-profit corporation, an association which may be established to cover the use and enjoyment of those

13. "Improvement" and/or "Improvements" shall mean all buildings, out-buildings, sheds, driveways, parking areas, fences, swimming pools, tennis courts, lights and utility poles and lines, and any other structure of any type or kind. Improvements to be placed on any Single Family Lot or Garden Home Lot require the prior written approval of the SJBARB as herein defined. Improvements on that portion of the Property containing Units and defined as Block U shall not require SJBARB approval.

14. "Land Use Covenants" shall refer to the Declaration of St. James Bay Land Use Covenants .

15. "Living Area" shall mean those heated and air-conditioned areas that are finished out as a living area and shall not include garages, attics, carports, porches, patios, or storage areas.

16. "Lot" for the purposes of these Bylaws, unless herein specifically stated otherwise, shall mean collectively Single Family Lots, Garden Home Lots, and Units and the improvements thereon.

17. "Maintenance," "Maintain," or "Maintained" shall mean the exercise of reasonable care to keep the lakes, Wildlife Habitat Areas, landscaping, drainage, stormwater treatment facilities, streets not dedicated to a public entity for maintenance, and other related improvements in good and functioning condition.

18. "Master Association" shall mean the St. James Bay Property Owners Association, Inc. a Florida not-for-profit corporation, which governs the use and enjoyment of the Property, other than that designated as "General Utility Area" and "Commercial Area" on Exhibit A and other than the Golf Club except as specifically set out in the Bylaws of the St. James Bay Property Owners Association and/or the St. James Bay Land Use Covenants.

19. "Member" shall mean every person or entity that holds membership in the Master Association.

20. "Multi-Family Association" shall mean the St. James Bay Multi-Family Association, Inc., a Florida not-for-profit corporation, which will govern the use and enjoyment of those Units located on Block U, as shown on the Plat.

21. "Owner" shall mean the record owner, whether one or more persons or entities, or one holding a legal or beneficial interest in a Lot at St. James Bay Development, but shall not include those holding title to a Lot, or an interest therein, as security for the performance of an obligation. However, those holding title as security for the performance of an obligation shall do nothing that would violate the provisions of the Bylaws of the St. James Bay Property Owners Association or the Land Use Covenants.

22. "Plat" shall mean that property plat, as platted in compliance with the designations and configurations as it is from time to time filed in the Public Records of Franklin County, Florida as St. James Bay land use plan. Configuration of the Blocks and Lots on such Plat shall be filed in the Public Records of Franklin County, Florida in phases.

23. "Property" shall mean all of the land that is part of the St. James Bay development.

24. "Set Back Lines" shall mean the distances set out herein that any structure must be from the various property lines on the Single Family Lots and Garden Home Lots.

25. "Single Family Association" shall mean the St. James Bay Single Family Property Owners Association, Inc., a Florida not-for-profit corporation, an association which may be established to cover the use and enjoyment of those Lots initially set out as Single Family Homes on the Master Plan.

26. "Single Family Lot" for purposes of these covenants shall mean that portion of the Property designated as Blocks A, B, C, D, E, F, G, H, I, N, O, P, Q, R and S on the Master Plan and divided into single family residential parcels for sale by the Developer to the general public. The Plat of the Subdivision will be recorded in the Public Records of Franklin County, Florida. Each individual single family residential parcel that is located in the blocks referred to above in this paragraph shall be known as a "Single Family Lot."

27. "SJBARB" shall mean the St. James Bay Architectural Review Board as set up in the Bylaws.

28. "St. James Bay Land Use Covenants" or "Land Use Covenants" shall mean those covenants attached as Exhibit D to the Bylaws in the Contract of Sale and recorded in the Public Records of Franklin County, Florida as they are from time to time amended.

29. "St. James Bay Development" shall mean the entire approximately 378 acres as shown on the Plat with all the designations shown thereon.

30. "Subdivision" shall mean all the Property known as St. James Bay, other than that property designated as "Commercial Area" and "General Utility Area, and as divided into Lots and Blocks as shown on the Plat. The Plat of Lots in the Subdivisions will be filed in phases.

31. "Unit" for the purposes of these Bylaws shall mean that portion of the Property designated as Block U and built, or to be built, as a multi-family facility and divided into separate single family units for sale or lease by the Developer, its successors and/or assigns to the general public. The Declaration of Units will be recorded in the Public Records of Franklin County, Florida. Each individual single family residential parcel that is located on said Block U shall be known as a "Unit."

ARTICLE II – ARCHITECTURAL REVIEW BOARD

1. Scope and Purpose – All residential construction in St. James Bay, whether large or small, must be approved in advance by the St. James Bay Architectural Review Board (SJBARB). This "Guidelines and Procedures" manual has been prepared and issued by the SJBARB specifically to encompass the construction and improvement of all single-family residences with regards to (i) construction of new residences, (ii) additions to, or exterior alterations of existing residences, (iii) re-stain, re-roof or otherwise improving the exterior appearances of existing residences. The standards herein are intended to provide a timely, systematic and uniform review for all construction requiring ARB approval.

The authority of the SJBARB is derived from the Bylaws of St. James Bay and is further set out in the Declaration of St. James Bay Land Use Covenants that are contained in the St. James Bay Contract of Sale. In the event there are conflicts between the contents herein and the Land Use Covenants, the recorded Land Use Covenants shall control.

2. Membership – The Developer and/or the Board of Directors of the St. James Bay Property Owners' Association (the "Board") shall appoint the members of the SJBARB, which shall initially consist of seven members. Each member shall serve for one year and thereafter until he/she is replaced by the Board. The Developer and/or the Board shall use reasonable efforts to establish the SJBARB comprised of the following parties; provided, however, if one or more of such parties is unable or unwilling to serve, the Board may appoint such other persons as are willing and able to serve.

a. The Developer or Developer's designee – At such time as Developer no longer wishes to serve and does not choose to appoint a designee or at such time as Developer's Class B membership is converted to a Class A membership, the Board shall have the authority to make the appointment in Developer's place.

b. An architect or engineer

c. A landscape architect or horticulturist

d. A home builder

e. A licensed real estate agent or broker

f. A member who is an owner of a Single Family Lot; and

g. A member who is an owner of a Garden Home Lot.

If the event a Multi-Family Association is formed, the SJBARB will be expanded to eight members, and the eighth member of the SJBARB will be appointed by the board of directors of the Multi-Family Association, and such appointee must be the Owner of a Unit.

Any member of the SJBARB may be removed at any time by a majority of the Board, except that the Developer or its designee may not be removed as long as Developer, its successors and/or assigns is a Class B Member. If the Member of the SJBARB that is removed is the Member appointed by the Multi-Family Association, the board of the Multi-Family Association shall appoint that Member's successor to the SJBARB that is acceptable to the Board.

The Developer shall initially choose the members of the SJBARB. Within the budget constraints of the approved budget set by the Master Association, the Board shall have the authority, but shall not be required, to compensate the members of the SJBARB. If a particular member of the SJBARB is performing a service for the SJBARB as a hired consultant, that particular member may be compensated without compensating the other members of the SJBARB.

3. No Construction Without Prior SJBARB Approval – The SJBARB, in its sole and absolute discretion, may approve or disapprove any building, fence, structure, alteration, addition or Improvement of any kind, but such building, fence, structure, alteration, addition or Improvement must comply with all Covenants and Restrictions. No building, fence, structure, alteration, addition, or Improvement of any kind, other than interior alterations not affecting the external appearance of a building or structure shall be commenced, erected, placed, or maintained upon any portion of Single Family Lot or Garden Home Lot unless and until the plans and specifications have been approved in writing by the SJBARB. Trees designated for removal must be marked and string lines designating the exterior perimeter of all Improvements must be in place prior to inspection and approval of all proposed construction or renovation. Refusal to approve plans, location, or specifications may be based upon any grounds, including purely aesthetic conditions, which the SJBARB shall deem sufficient in its sole and absolute discretion.

4. Approval Procedures – Any approval requested of the SJBARB shall be requested in writing by submitting either an Application for Approval for Construction or a Request for Variance to the SJBARB at the principal office of the Master Association. Such request must be complete with architectural plans, plot plan, including a detailed plan for controlling sedimentation during construction, landscape plan, and anything else required by the application. If the SJBARB feels the plans are insufficient to enable the SJBARB to make a decision, it shall notify the applicant within fifteen days that no action will be taken until the insufficiency is corrected. In the event the SJBARB fails to approve or disapprove such plans and specifications within 30 days after complete plans are submitted in a form acceptable to the SJBARB, the applicant may request in writing expedited review that states the plans have been complete and no action has been taken for 30 days. If the SJBARB still fails to act on the request for expedited review within 10 days of receipt of the request for expedited review, approval shall be deemed to have been granted.

Within 10 days after completion of construction of any Improvement within the St. James Bay Development, the Owner thereof, its builder, or other agent for the Owner, shall give written notice to the SJBARB that the Improvement is complete and ready for inspection. Within 15 days after receipt of such notice, the SJBARB, or its agent, shall inspect the construction of Improvement and shall notify the Owner within 15 days after

the inspection as to any defects or deficiencies that are found. This response from the SJBARB shall include a statement as to the corrections which should be made, if any, to render the construction of the Improvement in compliance with the approved plans and specifications. The Owner shall be given a reasonable period of time to correct the deficiencies, after which time the SJBARB or its agent will once again inspect the construction of the Improvement. In the event the SJBARB fails to inspect the Improvement and notify the Owner as to the defects within 30 days after the notice of completion the Improvement will be deemed in compliance with the plans and specifications previously approved. No structure that is not approved, or deemed to be approved, by the SJBARB under the provisions of this Section of these Bylaws may be occupied until such time as the SJBARB so approves.

5. Administration – The SJBARB shall have the power to adopt rules and establish procedures not inconsistent with the provisions of the Bylaws, including but not limited to construction and development standards as may be deemed necessary to insure a quality development and to insure preservation of the aesthetic qualities of the St. James Bay Development. In addition, the SJBARB shall have the authority to set standards for the control of sedimentation and run-off during the clearing and construction of any Improvements on Lots within the Subdivision. The written request and submittal of plans and specifications required shall include but not be limited to a specific site plan; floor plans with elevations; necessary structures and features, including pool, deck plans, screen enclosures, mailboxes, fences, and other pertinent structures; driveway and sidewalk locations; specific grading and clearing with sedimentation and run-off control; and landscaping plan, color scheme, designating the precise color of all exterior surfaces and exterior material to be used. The SJBARB may disapprove a plan for lack of artistic style or aesthetic quality, or for any other reason in its sole and absolute discretion.

6. Delegation of Authority – With the approval of the Board and within the budget constraints of the approved budget set by the Master Association, the SJBARB may hire such clerical and professional help that it deems appropriate and delegate those duties it deems appropriate to those hired. If the SJBARB delegates any final decision making powers to those hired, it shall set up a procedure of appeal to the SJBARB of any decision made by those to whom the powers are delegated.

7. Majority Rule – A decision of the SJBARB may be made by a majority of its members. If not all members are able to be consulted on a submitted plan, then a decision may be reached by a majority of those members of the SJBARB that are available for consultation during the inspection period. Any member may be consulted and give his opinion by regular mail, phone, E mail or FAX.

8. Fees – The SJBARB may set a reasonable fee to cover the costs of examination and inspection of each individual Lot, said fee to be paid when the application for approval of improvements is filed with the SJBARB

ARTICLE III – CONSTRUCTION GUIDELINES

1. Character – St. James Bay has embraced a style of architecture used in Coastal Florida in the 1930's and 1940's, an era of passive ventilation for home cooling. The visual appeal in the romance of the Coastal Florida Style expressed using current home-building techniques will create a community of homes as attractive as they are practical. St. James Bay residents will enjoy the pride of owning a home with an appropriate sense of place that is beautiful, comfortable and compatible with the environment. The building design should reflect Coastal Florida architectural tradition in window and door openings, glazing, details and finishes, roof profile, accessory features, and as much as practical, traditional building materials.

2. Building Orientation - Buildings should be oriented so that the main entrance is directed toward the primary street used to access the site and creates a strong sense of "front" or relationship to the street. The relationship with existing buildings on adjoining sites should also be considered.

3. Site Grading – Consideration will be given during construction to the quality, area, and location of indigenous plant materials. To prevent negative impact at a later date, nearby indigenous trees and shrubs should not be adversely impacted by filling on the root systems. Grading and fill on any lot is specifically discouraged. For restrictions on grading of lots adjacent to wetlands, refer to the Declaration off the St. James Bay Land Use Covenants.

4. Erosion Control - It will be the responsibility of the property owner's builder to design an adequate erosion control plan to be included with the site plan package. The property owner is responsible for the installation and maintenance of all erosion control measures to prevent sediment deposition on adjacent downstream properties.

5. Foundation - The foundation should read as a single element, separate from the massing of the building. Foundation walls exposed to view shall be either masonry, or a combination of masonry and wood lattice. The types of foundations allowed are elevated post tensioned concrete slab and pier and beam.

6. Square Footage Requirement - No dwelling shall be constructed on a Lot designated as a Single Family Lot that contains less than 2000 square feet of Living Area, and no dwelling shall be constructed on a Lot designated as a Garden Home Lot that contains less than 1500 square feet of Living Area. Once construction begins, it shall be pursued diligently until completed. The exterior of all houses and other structures must be completed within one (1) year after the construction of same shall have commenced, except where such completion is impossible due to reasons beyond the Owner's control or would result in great hardship to the Owner or builder due to strikes, fires, national emergency or natural calamities.

7. Golf Course Setback - No structure of any type may be constructed within twenty-five (25) feet of a Golf Club property line on any Single Family Lot or Garden Home Lot. In accepting a deed to a Lot, the Owner of any Lot bordering the Golf Club accepts the risk of ownership of such Lot, and acknowledge that any portion of their property or dwelling may be hit by golf balls and anyone outside on such Lot is in danger of being

hit and accepts that responsibility for both the Owner and the guests or invitees of said Owner.

8. Front Yard Setback - Setback Lines for Single Family Lots and Garden Home Lots shall be Twenty (20) feet from the front property line along any street (nearest the street), and no structure may be placed in this area.

9. Wetland Setback - No Improvement of any kind may be built on a Single Family Lot or Garden Home Lot within twenty-five (25) feet from any property line where that line joins an area designated as a wetland area on the Master Plan as shown on Exhibit B.

10. Side Yard Setback Line -

(a) Side yard Setback Lines in the Single Family Lots shall be a minimum of five (5) feet between side property line and any Improvements put on a Single Family Lot.

(b) Side yard Setback Lines in the Garden Home Lots shall be as follows: when facing the Garden Home Lot from the street the left side of the Lot shall be a zero set back space and the right side shall be five (5) feet between any improvement and the adjoining Lot. No part of the structure may overhang the property line on the zero side and no water falling from the roof shall be allowed to fall to the ground onto the adjoining property on the zero side of the property. The garage or carport of the property shall always be on the right side or five foot setback side of the Lot. However, when a Garden Home Lot has no adjoining lot on one side or both sides, the side yard Setback Line shall be the same as a Single Family Lot except where it is controlled by another Setback Line such as a wetland or golf course Setback Line.

(c) No structure may be placed on the property outside the Setback Lines. At any time two contiguous Lots are owned by the same person or entity, and that person or entity submits plans to build one structure on both Lots, the side yard Setback Line between the two Lots will be eliminated and a side yard Setback Line on the combined Lots shall be set by the SJBARB, but shall not be less than the Setback Lines set out herein

11. Back Yard Setback - In areas that the back yard does not face either the Golf Club or wetlands, no structure of any kind may be built within 20 feet from the rear property line of any Single Family Home Lot or any Garden Home Lot.

12. Fourplex Setback - No structures built in Block J, as shown in Exhibit B, shall be built closer twenty (20) feet from the street side property line and all drives and garages shall be as designated by Developer, his successor and/or assigns. This Block is intended for Fourplex and Duplex attached structures so that back and side yard set backs are not to be considered in this Block only.

13. Garages and Carports - (a) In the Single Family Lot area of the Subdivision all residences must have a garage with a closing door and the entrance to that garage must be back from the Front Yard Setback Line of a Lot at least twenty (20) feet. (b) In

the Garden Home Lot area of the Subdivision all residences must have either a carport or a garage. The entrance of that garage or carport must be back twenty(20) feet from the Front Yard Setback Line of the Lot. All garages and carports must be an integral part of the house and not just connected by a walkway. If the subject Lot contains a garage it must have a working closing door; if it is a carport, such structure must not be enclosed except on the side of the residence structure, except that storage may be built at the end of the carport away from the street. Any storage in carports must be enclosed and the open area shall be kept clean and free of objects or debris.

14. Variance Approval - The SJBARB shall have the power to vary a Setback Line and other requirements set out in this Guidelines for Construction where, in the SJBARB's sole and absolute discretion, strict enforcement of the applicable Setback Line or other such requirement would result in unnecessary hardship or where a good tree could be saved by a slight variance, except the SJBARB may not vary the Setback Line from any area designated as a wetland or against the Golf Club.

15. Utility Easements - Easements and rights of way are expressly reserved for the creation, construction, and maintenance of utilities, as, for example gas, water, telephone, cable TV, electricity, sewers, storm drains, or private utility or function deemed necessary or expedient for the public health and welfare. These easements and rights of way shall be confined to the rear ten(10) feet of every Lot abutting property comprising a part of the Golf Club and five (5) feet along each side of the property line separating every Lot in the Single Family Lot portion of the Subdivision, and five (5) feet along the side of the Garden Home Lot line that is not the zero lot line side; and the front ten (10) feet of every Lot along every street of the Subdivision; provided further that Developer and/or Master Association may cut drainways or build berms for surface water diversion or containment wherever and whenever such action may appear to Developer and/or Master Association to be necessary in order to maintain reasonable standards of health, safety, and appearance. These easements and rights expressly include the right to cut any trees, bushes, shrubbery, make any grading of the soil, or to take any other similar action reasonably necessary to provide economical and safe utility installation and to maintain reasonable standards of health, safety, and appearance. Where two Lots have been purchased by one Owner in the Single Family Lot area or Garden Home Lot area upon which a single structure is to be built, the easement derived from this paragraph that would have originally been between the two purchased Lots shall cease to exist except where it is an easement that was on the Master Plan, there is already an implied easement established by a utility line or drainage pipe already installed between the Lots and/or there is already a recorded easement in the Public Records of Franklin County, Florida between the Lots.

16. Height Restriction - The height of residential structures on the Single Family Lots and the Garden Home Lots is limited to no more than two (2) stories of Living Area not to exceed 35 feet above the floor surface of the first floor of the living area.

17. Front Porches - All front entrances to residences built on the Single Family and Garden Home Lots are required to have front porches. The front porches must comprise a minimum of 40% of the front facade and are required to have a minimum depth of 6 feet with a maximum depth not to exceed 12 feet.

18. Elevations -All homes built on the Single Family and Garden Home lots are required to have elevated first floors and porches that are at least 24" above grade and not more than 48" above grade. Streetscapes on significant corners are encouraged to be two (2) stories.

19. Roofs - Sloped roofs are required on all buildings. Pitches can range from 4:12 to 8:12 depending on the design, and architectural style, of the individual building. The roof expanse may be visually enhanced by height changes, pediments, gables, dormers, chimneys, clerestories, etc. Roofing shall be fire resistant shake shingles in unpainted natural wood, concrete or slate tile, standing seam metal, or composition shingles; all of pre-approved color selection.

20. Walls, Fences and Ramps - No wall, fences or ramps shall be erected or placed within the front (next to street) setback lines of any Lot. No wall or fence may be erected or placed in any Setback area facing the Golf Club or any Setback area facing areas designated as wetlands; there will be no variance given to this rule. Ramps will be permitted when necessary for handicapped accessibility. When necessary, they should be placed in a fashion in such that their appearance does not detract from the appearance of the community.

21. Exterior Color – All exterior colors should complement, not contrast, with the surrounding environment. A display of "pre-approved" colors is maintained in the SJBARB office in order to simplify the owner's color selection. If the owner chooses a color that is not on the "pre-approved" list, then that color shall be submitted to the SJBARB along with the plans for approval.

22. Exterior Materials –

(a) Masonry - Masonry may be employed for the construction of brick piers, brick foundation walls, and brick columns. Generally masonry is discouraged for purposes other than those generally outlined as being inconsistent with the historical northwest Florida architecture. Masonry for the purpose of these guidelines includes brick. Modular brick sizes are preferred, as they reflect the Florida Style tradition. Exposed concrete block and econo or utility oversized bricks are not permitted as masonry materials. Brick colors shall be those already approved. Other brick colors will be considered on an individual basis.

(b) Wood - Wood siding shall be employed in a manner consistent with Coastal Florida Style Architecture seen in this region prior to the 1940's. On wood clad buildings brick piers with a quality lattice infill may be an acceptable foundation alternative. The lattice shall be recessed at least one half the depth of the pier, and the lattice shall be constructed of wood having a thickness no less than 3/4". Decks and porches on wood clad, as well as masonry, buildings must have treated wood or masonry pier foundations if visible from the street. On wood clad buildings all windows must have pediment trim, a sill and side trim with a minimum nominal dimension of 4". Doors should have pediment trim, sill and side trim with a minimum nominal dimension of 4". Porches are encouraged to be

constructed of wood, and have a minimum depth of 6 feet and a maximum depth of 12 feet.

(c) Glass - Reflective or darkly tinted glass is not permitted.

(d) Other Materials - Cement fiber material may be used as a horizontal siding material. Vinyl or aluminum siding, soffit or trim materials will be allowed in appropriate colors and finishes. Stucco is also permissible as a finish material.

23. Windows - Windows with multiple lights should be punched, vertically oriented rectangular openings. Windows of square proportion are discouraged on the lower floors of any building. All windows shall have significant architectural detail at their head and sill. First and second floor windows that are aligned on vertical centerlines are encouraged. The proportion of these individual lights must be either square or of vertical proportion. Corner windows are discouraged for not being consistent with Northwest Florida historical architecture. Horizontal strip windows are discouraged as discordant in style and less effective as sources of light. Alternatively, skylights are encouraged. As a practical consideration, no windows below five feet from the floor are allowed on the first floor of the zero lot line side of any residence. Windows are to be of a design consistent with Coastal Florida Style Architecture, in terms of size proportion and materials.

24. Landscaping – Landscaping and other vegetation on individual properties shall not materially impair the continuity of the general landscaping plan of the St. James Bay Development. All Lot Owners are required to use as close to the natural vegetation type normally found in the area as possible in their landscaping, using Xeriscape methodology. Exotic plants as they are from time to time designated for this area of Florida are prohibited. Respecting existing native trees and shrubs contributes significantly to community landscape quality and character. These key elements anchor the setting and signify the relationship the St. James Bay community has with the environment. Saving existing trees between building and street is a top priority. Tree removal only for the placement of buildings is preferred. The predominant use of replacement native plant material is required, in addition to the protection of the existing trees and shrubs. Native plants indigenous to the region will prove to be less wasteful of water resources, have much lower fertilizer and insecticide requirements, provide a greater biological diversity, and require a lower overall level of landscape maintenance on the part of the homeowner. Landscape themes utilizing native plants not reliant upon irrigation is also encouraged. Large, manicured lawns are strongly discouraged as being inconsistent with the ecosystem of the surrounding wetlands, and the neighborhood landscape themes. Large, excessive lawns would require wasteful amounts of water resources in the highly filtratious soils found in St. James Bay

25. Site Furnishings – Site furnishings shall be designed as an integral part of the site plan and complimentary to the surrounding architecture. This includes, but is not limited to, benches and seating, trash receptacles, planters, outdoor tables, etc. Residential lawn furnishings are prohibited in the front yard, as are home made furnishings of wood. Colored catalog pictures of all permanent site furnishings and appurtenances must be submitted for approval to SJBARB.

26. Driveways - Access driveways should provide for the smooth and uninterrupted ingress and egress of all vehicle traffic. In some cases such driveways may be serving multiple properties by means of easements. All driveways and parking surfaces shall be paved with asphalt, darkened concrete, or special paving, such as brick or interlocking concrete pavers or such other material as may be approved by the SJBARB. Alternative paving solutions for driveway and parking areas should be submitted to the SJBARB for approval. No driveway may exceed ten (10) feet in width in the Front Yard Set Back Line. Garages and carports are to be used solely for parking automobiles and other vehicles. Garages shall not be converted into habitable space or storage areas.

27. Sidewalks – Developer will build a sidewalk running parallel with the front property line. The Owner shall pay Developer for the sidewalk construction, which shall be maintained by the Home Owners Association. Each home in St. James Bay is required to link the front door with a paved walk to the sidewalk streetscape, pedestrian ways and bikeways abutting the property.

28. Mailboxes - If the U. S. Postal Service requires that the mail be delivered and picked up at a central location or it is deemed by Developer and/or the Master Association that it is preferable to have a central location to deliver and collect the mail, no mail boxes will be allowed other than those at the central location. Otherwise, the size, location, design, and type of material of mailboxes or paper boxes or other receptacles of any kind must be approved in writing by the SJBARB prior to construction.

29. Signs - No sign of any kind shall be exhibited on or above any Lot in the Single Family Lot Subdivisions or the Garden Home Lot Subdivision without written approval of SJBARB or its duly authorized designee, successor, or assigns, except as provided herein. One professionally produced sign of not more than 3 square feet may be temporarily displayed by each property Owner within the confines of his own Lot during a political campaign or in support of a civic activity, for a reasonable period, such period to be determined by the SJBARB in its sole and absolute discretion. One sign not more than 5 square feet may be displayed by a builder to advertise the property during construction. One sign of not more than 5 square feet may be displayed advertising a subject property for sale or rent. Signs permitted under these exceptions must be removed from the property if requested by the SJBARB, and decision by the SJBARB shall be in the SJBARB's sole and absolute discretion and may be arbitrary. The SJBARB is authorized to remove any such sign if it has not been removed within three (3) days of the notice to remove is given by the SJBARB. Developer, its successors and/or assigns may display a reasonably sized construction and information sign during development of any of the property making up St. James Bay Development.

30. Exterior Site Lighting - Exterior lighting must be a white light source only. Only low light sources are permitted. All site lighting shall be positioned to minimize visibility of light sources from any public view and shielded to prevent glare or spill over onto adjacent sites. Light fixture housings, standards and supports shall be traditional in design and finished in a compatible palette of dark colors such as dark bronze, black, or forest green. Exterior illumination for buildings to enhance architectural elements is encouraged. However, building mounted floodlights are not permitted.

31. Utilities - All utility lines and facilities shall be underground, or concealed under or within a building or other improvement. Temporary electrical power and telephone service poles may be permitted above ground during construction phase of the work, but shall be removed prior to the issuance of a Certificate of Compliance. Utility lines shall be routed to avoid damage to existing significant trees. All buildings other than those on the Bay Facility shall connect with central water and sewer utilities.

32. Antennas - No antennas, pipes, wires, or other appurtenances underneath or adjoining a structure shall be exposed. All utilities must be buried. No satellite dish may exceed twenty-five (25) inches in diameter, and such dish shall be contained within a building, or effectively screened from view from the roads or pedestrian ways.

33. Garbage Receptacles- During construction of any home in the Single Family Lots or the Garden Home Lots, the contractor or builder of any home shall place a trash receptacle on the property and all trash, garbage and construction debris created during construction shall be deposited in said receptacle and said receptacle shall be emptied when necessary to avoid being unsightly. No garbage, trash or construction debris shall be piled upon the ground. After the construction is completed, each Lot Owner in the Single Family Lots and the Garden Home Lots shall provide receptacles for garbage in a secure location not generally visible from the street. In order to reduce potential human-wildlife conflicts, household garbage must be kept in a container inside the garage or walled storage area of the residence (not an open or screened porch), or must be stored in a wildlife-proof receptacle approved by the SJBARB until the day of collection.

34. Swimming Pools - Swimming pools that are not completely enclosed may be located on lots that back up to other residential lots or do not back up to the golf course or any wet lands. Lots backing to the golf course may only have a pool where the pool and any decking is completely behind the setback requirement and is completely enclosed. Lots backing to the wet lands may only have a pool where the pool and any decking are fenced and the pool, decking and fencing are completely behind the setback requirement.

35. Other Mechanical Equipment - All mechanical equipment (i.e., compressor units, pool equipment) must be screened in an integrated structure, an adjacent building, or a screened service yard located at grade. Adjacent freestanding equipment must be screened on all sides. This screening is to be 8" taller than the equipment being screened.

36. Tree Removal - Removal of any tree four (4) inches or more in diameter at a point three feet above ground level from any Single Family Lot or Garden Home Lot must be approved by the SJBARB prior to removal. Fear of damage from trees blown down by high winds or hurricanes or mess made by the droppings from the trees to roof, patio, deck or pool are not valid reasons for removing trees. Should a tree be removed in contravention of this section, the SJBARB and/or Master Association may replace the tree, or an equivalent tree, of equivalent size, and the cost of such replacement plus twenty-five percent (25%) shall be assessed the Lot Owner and said assessment shall be collected and enforced in the same method of any other assessment on the Lot by the Master Association.

ARTICLE IV – EXISTING STRUCTURES

1. Exterior Painting or Restaining – The exterior surfaces of homes must be properly maintained. Badly mildewed and/or faded exterior surfaces must be washed and restained/repainted as necessary. When you find it necessary to restain or repaint all or part of the exterior of your house or an auxiliary structure, before you undertake such work, you must first request and obtain written approval from the SJBARB, even if you intend to utilize exactly the same color(s) now existing on your house, or if the color has been approved in the past or if you see that color on another house. All cases will be treated separately on an individual basis.

2. Roof Repair or Replacement – Roofs and rain gutters or diverters must be kept clean of debris. If you need to replace missing roof shingles or otherwise repair a portion of the roof of your residence, you must do so with shingles of exactly the same color and materials as the existing shingles. Replacement wood shake shingles will obviously be lighter than existing ones until weathering occurs, and such is deemed acceptable. Approval by the SJBARB for minor roof repairs is not required. If you intend to replace your roof with the same type and color shingle as the existing shingle, then you may do so without SJBARB approval. If, however, you intend to replace the roof with either different type or different color shingles, then you must get SJBARB approval at least five (5) days prior to the intended commencement of the roof work.

3. Tree Removal or Pruning – The pruning of dead or diseased tree limbs or of large limbs which overhang a residential structure may be undertaken at the property owner's discretion, without approval by SJBARB. However, no tree four (4) inches or more in diameter measured at a point three feet above ground level, on any Single Family Lot or Garden Home Lot, may be removed without prior written approval by the SJBARB. Therefore, you should not remove any tree (4" or larger diameter) regardless of species, condition, or location, unless you have first obtained the required written approval by the SJBARB. The SJBARB cannot and will not accept any after-the-fact excuse or explanation that a tree was diseased or dead, etc. The Board's representative must inspect and verify the basis for removing all trees in St. James Bay.

4. Resurfacing or Reshaping Driveways – Seal coating, patching or overlay resurfacing of an existing driveway does not require SJBARB approval, so long as the configuration, size and location of the existing driveway is not changed. If any change is to be made in the configuration or position of a replacement driveway, such action is deemed new construction, and thus must be approved by the SJBARB.

5. Interior Remodeling – No SJBARB approval is required for any interior remodeling of a structural, mechanical or electrical nature, so long a no exterior alterations (e.g., addition or change of windows or doors) is involved.

6. Demolition – Though rare, there are instances when an existing structure may be severely damaged or destroyed by fire, storm action or other causes. In the event that this occurs, the damaged structure must be demolished and removed from the property in a timely and orderly manner, which shall be non-offensive to neighboring property owners according to a plan approved by the SJBARB. An application for Demolition Approval must be submitted to the SJBARB within 60 days of the occurrence of the damage, and no clearing or demolition work shall begin before Demolition Approval has

been issued by the Board. This requirement exists whether the demolition work is a prelude to repairing/rebuilding the damaged structure or is to completely raze the structure prior to resale of the property as an undeveloped lot. A Demolition Permit issued by the Board will be valid for 30 days from the date of issuance, unless an extension of time is formally requested in writing and approved by the Board in advance.

ARTICLE VI – SPECIAL RULES FOR BUILDERS / CONTRACTORS

In an attempt to enhance the subdivision's overall appearance to residents and visitors, the following regulations have been set forth. These regulations are to be used as guidelines, and are not intended to restrict, penalize or impede construction firms who adhere to these regulations while performing their duties in St. James Bay. Repeated violations of these regulations could result in the suspension of the building permit for that residence until corrective action has been taken by the builder. Additionally, a builder who repeatedly violates either the letter or "spirit" of these guidelines may be prohibited from working in St. James Bay.

1. No work may be started until SJBARB has approved the Owner's plans.

2. Construction work, both exterior and interior, must be limited to the hours of 7:00 A.M. to 7:00 P.M., Monday through Saturday only. Workers and their vehicles should not arrive before 6:45 A.M., and should depart from the job site before 7:15 P.M. without exception.

3. No trees larger than four (4") inches in diameter may be removed unless indicated for removal by the SJBARB.

4. A portable toilet must be placed on the job site, for use by all workers on that project, prior to the start of any work. The only exception to this requirement is in the case of building additions or alterations where full access to working interior toilets is granted, and is available to all workers, by the owner of the existing residence being modified. All portable toilets must be emptied, cleaned and chemically treated regularly (not less than once per week) to prevent offensive odors or appearance.

5. Construction shall be in strict accordance with the drawings, site plans, materials and colors submitted to and approved by the SJBARB. NO EXTERIOR CHANGES MAY BE MADE WITHOUT PRIOR WRITTEN APPROVAL FROM SJBARB. This includes exterior materials or colors, or door and windows (number, location, size or style).

6. All motor vehicles, including those belonging to the builder, his subcontractors or suppliers, and workers' personal vehicles, must be parked off-street and only on the project property. Where conditions do not allow such to occur, the builder must arrange in advance for an alternative jointly with SJBARB and neighboring property owners. The builder and property owner are responsible for seeing that all construction workers and suppliers obey all traffic and security regulations of St. James Bay.

7. Maintenance of a clean and orderly building site is imperative throughout the term of the project. The builder must provide at least one suitably sized trash receptacle at the job site prior to starting any work. Trash shall be placed directly into these containers, and at the end of each day the builder shall assure that any loose litter / trash is placed in the container. The container must be emptied as often as necessary to assure that trash does not spill or blow out. All trash must be removed from St. James Bay. No dumping of any kind is allowed within the subdivision.

8. All vehicles used to haul trash, fill dirt, debris, building material, etc., must be equipped with a net or cover to contain loose material so as to prevent any spilling.

9. All construction materials must be kept within the property lines, maintaining a clear right of way. Burning of trash and unused building materials is not allowed.

10. Failure of the builder to properly maintain site cleanliness may, after notice from the SJBARB, result in assessment of penalties and/or clean up being done by others designated by SJBARB with the cost of such billed to the builder.

11. Builder should thoroughly familiarize themselves with the SJBARB's policies on "Signs", as these policies will be strictly enforced.

12. The builder is responsible for obtaining water and electrical service at the job site prior to starting any work that requires their use. Obtaining water or electricity from neighboring properties is prohibited. Temporary utilities shall be installed in a neat manner.

13. Loud extraneous noises are not permissible. Thus, no loud playing radios or musical devices or loud, profane language will be tolerated. All workers, including subcontractors and supplier personnel, shall be informed by the builder about this requirement.

14. Any damage done to roadways, sidewalks, bike path, or golf cart paths, or to adjacent properties during the course of the project – and no matter whether caused by the builder's employees or equipment or by those of subcontractors or suppliers – must be repaired by the builder prior to construction completion.

15. Final grading shall include drainage swales, berms, culverts or other appropriate provisions whenever the construction adversely affects drainage of the natural watershed or causes runoff to adjacent properties.

16. SJBARB has the right to enter and inspect the premises, from time to time at its sole discretion and without prior notice, in order to verify that work is proceeding in accordance with the approved plans. A SJBARB inspector may enter and inspect the construction when it is safe to do so and without interference to work in progress. The SJBARB has the authority to issue a "stop work" order if construction is observed to be non-compliant with SJBARB-approved plans or policies.

17. Storage trailers or other temporary structures may not be placed upon the lot during construction except with the written consent of SJBARB. The Board's consent will be based upon the applicant's proof of need for the structure and the acceptability of

it's configuration. Authorized temporary structures shall at no time be used for living quarters, and they shall be removed prior to occupancy of the building.

18. All Tap Fees for water and sewer must be paid prior to the start of construction. A check made payable to the "City of Carrabelle" in the amount of $6,000 to cover the tap fees must be delivered to the SJBARB office prior to the issuance of the Approval for Construction. No Approval for Construction will be issued unless the Tap Fees have already been delivered to SJBARB.

ARTICLE VII – PENALTIES FOR NON-COMPLIANCE

In the event that owner and/or builder does not comply with the Guidelines set forth here, the following penalties will be imposed on the Owner.

1. Compliance Deposit – Once it has been determined by the SJBARB that a siting variance of greater than 1 foot, or any other major exterior change or variance from the plans have been made without the prior approval of SJBARB, Owner will be required to submit to SJBARB a Compliance Deposit of $2,500. Construction will not be permitted to resume until the Compliance Deposit is received by SJBARB. The Compliance Deposit shall be held by SJBARB until the completion of construction. Once construction is complete, SJBARB will determine whether construction is in compliance. If the construction is deemed to be in compliance, the Compliance Deposit shall be returned to the Owner. If the construction is deemed to be in non-compliance, the Compliance Deposit will be kept by SJBARB until such time the construction is modified to be in compliance with the plans.

2. Other Penalties – All other penalties are listed in the Schedule of Penalties, attached as Exhibit A to this Guidelines and Procedures manual and to the Approval for Construction.

Exhibit A

Schedule of Penalties

As indicated in Paragraph 4 of the Approval for Construction, of which this is a part, the following schedule of penalties for the indicated compliance or rules violations will apply to the above captioned project:

1. Non-compliance with approved construction plans, including a siting variance greater than 1 foot, or any major exterior change without prior SJBARB approval.

   Compliance deposit ($2,500); must also submit as-built drawings

2. Minor deviation form approved construction plans.

First violation:	Must submit as-built drawings
Second & subsequent violations:	$100 fine and as-built drawings

3. Failure to submit landscape plan within specified time period.

   $2.50 / day ($50 minimum, $500 maximum)

4. Failure to complete landscaping per SJBARB-approved landscape plan within 90 days after receipt of Certificate of Occupancy from Franklin County.

   $20 / day ($300 minimum, $1,500 maximum)

5. Clearing of site (removal of any trees) or start of construction before SJBARB Approval for Construction is issued.

   Immediate stoppage of work, unauthorized damage to trees to be determined

6. No portable toilet or trash container at job site.

   $100 / day *

7. Failure to deposit all trash in receptacles or trash overflow.

   $100 / day *

8. Construction trash fires – $500

9. Violation of any sign rule

First infraction at specific job site:	$100 / day *
Second infraction at same site:	$500 / day **

10. Failure to post SJBARB Approval or any other permits.

$100 / day *

11. Use of exterior colors not approved by SJBARB.

Compliance deposit ($2,500), or $250 if changes to approved colors

12. Unauthorized tree removal (greater than 4" diameter)

Pine or Palmetto	$ 500 per tree ***
Oak (any variety)	$2,000 per tree ***

13. Failure to initiate construction within 6 months of SJBARB approval.

Revocation of SJBARB Approval for Construction

14. Failure to complete project within one year after SJBARB approval, unless written extension granted by SJBARB in advance.

Compliance deposit ($2,500)

15. Building occupancy prior to issuance of Certificate of Occupancy by Franklin County, or before furnishing a copy of such C.O. to SJBARB.

$1,000

* After 48-hours (2 working days) telephone notice by SJBARB or it agent.
** After 24-hour notice, sign will be removed by SJBARB or its agent.
*** May be reduced by implementing a tree replacement plan approved by the SJBARB.

ACKNOWLEDGEMENT:

The above Schedule of Penalties potentially applicable to this project has been reviewed and is acknowledged by my/our signature below.

_____	_____
Property Owner	Builder
Date:_____	Date:_____